

IN THE [NAME OF SENTENCING COURT — CONFIRM WITH THE CLERK OF THE
SENTENCING COURT], STATE OF OHIO

STATE OF OHIO,
Plaintiff,

v.

MORGAN SAMPLE,
Applicant.

DOCKET NO.: [TO BE CONFIRMED]

APPLICATION FOR SEALING OF A CONVICTION OR BAIL-FORFEITURE RECORD PURSUANT
TO OHIO REV. CODE § 2953.32

STATUTORY AUTHORITY

Ohio Rev. Code § 2953.32 — Adult conviction sealing/expungement (§ 2953.32): an eligible offender applies to the sentencing court (or a court of common pleas for an out-of-state/federal conviction) unless excluded by § 2953.32(A); the court checks timing, pending cases, rehabilitation, prosecutor/victim objections, and whether the person's interest outweighs legitimate government needs.

Ohio Rev. Code § 2953.61 — Multiple charges from the same act (§ 2953.61): if a person was charged with two or more offenses from the same act and at least one charge has a different final disposition, they generally cannot seal/expunge only part of the record until they can seal/expunge all related charges (limited traffic exception). Ask for every charge and disposition before routing.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the sentencing court for Franklin County, Ohio, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this application occurred in Franklin County, Ohio.

II. PARTIES

3. Applicant is Morgan Sample, whose address is 1234 Example Street, Columbus, OH 43215.

4. Plaintiff is the State of Ohio.

5. Applicant has also been known as: Morgan Q. Sample.

III. FACTS AND CASE HISTORY

6. On or about 11/15/2022, Applicant was charged with Theft by Columbus Division of Police.

7. The matter was assigned Docket Number [TO BE CONFIRMED].

8. On 03/01/2023, the matter was resolved with the following disposition: Convicted (guilty plea).

9. The offense grade was: Felony of the fifth degree.

IV. ELIGIBILITY ALLEGATIONS

10. Applicant may be eligible for sealing on the following basis: Sealing of a felony of the fourth or fifth degree conviction under Ohio Rev. Code § 2953.32 — 1 year after final discharge.
11. Sealing (§ 2953.32): F4 or F5 — 1 year after final discharge.
12. Final discharge is complete: the sentence, parole, all fines and all restitution are complete.
13. No criminal proceedings are pending against Applicant.
14. No charge from the same act has a different final disposition that remains uncleared (Ohio Rev. Code § 2953.61).

IMPORTANT: Applicant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Applicant respectfully requests that this Court:

- (a) Grant this Application and enter an Order directing the sealing of all records of the case sought to be sealed under Ohio Rev. Code § 2953.32 (the Bureau of Criminal Identification and Investigation retains a limited record where the statute requires) in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to seal all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, Morgan Sample, verify that the statements made in this application are true and correct to the best of my knowledge, information, and belief.

Morgan Sample
1234 Example Street, Columbus, OH 43215

Date: _____

[NOTE: Date of birth and Social Security Number should be added by applicant if required by the applicable form or local court rules.]

Prepared by applicant using LegalEase RCAP. This is not an official court form.